

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
HECTOR CAZADO,

Plaintiff,

SUMMONS

-against-

Plaintiff designates

Bronx County

as place of trial

CITY OF NEW YORK, POLICE OFFICER "JOHN"
ORTIZ, Shield #7862 and POLICE OFFICERS JOHN and
JANE DOES 1 through 10,

The basis of venue is:

Situs of Occurrence

Defendants.

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To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
December 3, 2018

The nature of this action is for injuries sustained as a result of the defendants' negligence.
The relief sought is monetary damages.

ELEFTERAKIS, ELEFTERAKIS & PANEK

BY: Gabriel P. Harvis, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, N.Y. 10005
(212) 532-1116

Failure to respond, a judgment will be against you, by default and interest from October 5, 2017.

Defendants:
CITY OF NEW YORK
100 Church Street

New York, New York 10007

POLICE OFFICER "JOHN" ORTIZ, Shield #7862
C/O CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICERS JOHN and JANE DOE 1through 10
C/O CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
HECTOR CAZADO,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

CITY OF NEW YORK, POLICE OFFICER "JOHN"
ORTIZ, Shield #7862 and POLICE OFFICERS JOHN and
JANE DOES 1 through 10,

Defendants.

-----X

Plaintiff, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, as and for his

Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, **HECTOR CAZADO**, at all times herein mentioned was a resident of the State of New York.
2. That at all of the times hereinafter mentioned, and upon information and belief, the defendant, **POLICE OFFICER "JOHN" ORTIZ, Shield #7862**, was a resident of the State of New York.
3. That at all of the times hereinafter mentioned, and upon information and belief, the defendants, **POLICE OFFICERS JOHN and JANE DOES 1 through 10**, were residents of the State of New York
4. Defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
5. That on or about January 3, 2018, a Notice of Claim was served on the defendant, **THE CITY OF NEW YORK**, prior to the commencement of this action.
6. That on or about January 3, 2018, **HECTOR CAZADO**, herein duly presented in writing to the defendant, **THE CITY OF NEW YORK**, the claim for damages herein set forth

- and upon which this action is founded and that said claim was presented for adjustment.
7. That more than 30 days have elapsed since the said Notice of Claim was served upon the defendant and the defendant, **THE CITY OF NEW YORK**, has failed and refused to make an adjustment of any claim herein set forth.
 8. A hearing pursuant to §50(h) of the General Municipal Law was held on October 12, 2018.
 9. That all conditions precedent to the bringing of this action have been complied with.
 10. That this action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.
 11. At all times relevant and material herein, the defendant, **POLICE OFFICER "JOHN" ORTIZ, Shield #7862**, was an officer, employee and agent of the Defendant, **CITY OF NEW YORK**.
 12. At all times relevant and material herein, the defendant, **POLICE OFFICERS JOHN and JANE DOES 1 through 10**, were officers, employees and agents of the Defendant, **CITY OF NEW YORK**.
 13. On or about October 5, 2017, at approximately 5:30 p.m., **HECTOR CAZADO** was in the area of 2125 Tiebout Avenue in the Bronx, when **DEFENDANT OFFICERS**, including **DEFENDANT OFFICER "JOHN" ORTIZ** brutally assaulted **PLAINTIFF**.
 14. Videotaped footage of the vicious attack confirms that as Plaintiff was already restrained by **DEFENDANTS OFFICERS**, **DEFENDANT ORTIZ** punched **HECTOR CAZADO** in his face, nose and eye area.
 15. The videotaped footage further shows blood flowing from **PLAINTIFF'S** face as he appears to lose consciousness following the abuse and violent blow.

16. **DEFENDANT OFFICERS** left **PLAINTIFF** on the ground, apparently knocked out cold from **DEFENDANT ORTIZ'S** blow, his body contorted, as he bled from his face, nose and eye area.
17. Instead of taking **PLAINTIFF** to the hospital, as constitutionally-required, the **DEFENDANT OFFICERS** took him to the 46th Precinct.
18. **PLAINTIFF** suffered damage as a result of **DEFENDANTS'** actions. **MR. CAZADO** suffered, *inter alia*, pain, permanent and ongoing bodily injury that will require future medical treatment, emotional distress, mental anguish, fear and anxiety.
19. **PLAINTIFF** seeks compensatory and punitive damages, attorneys' fees and costs, and such other and further relief as the Court deems just and proper.

FIRST CAUSE OF ACTION

Assault and Battery

20. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.
21. By their conduct, as described herein, the defendants are liable to Plaintiff for having assaulted and battered Plaintiff.
22. Defendant, CITY OF NEW YORK, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
23. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
24. By reason of the assault and battery of MR. CAZADO plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise

have jurisdiction.

25. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SECOND CAUSE OF ACTION
Intentional Infliction of Emotional Distress

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
27. By reason of the foregoing, and by assaulting, battering, and using gratuitous, excessive, brutal, sadistic, and unconscionable force or failing to prevent other defendants from doing so, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon the plaintiff.
28. The intentional infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.
29. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
30. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Negligent Infliction of Emotional Distress

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully

set forth at length herein.

32. By reason of the foregoing, and by assaulting, battering, and using gratuitous, excessive, brutal, sadistic, and unconscionable force or failing to prevent other defendants from doing so, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon plaintiff.
33. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.
34. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon plaintiff.
35. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
36. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION
Negligent Hiring and Retention of Employment Service

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
38. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.
39. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

40. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.
41. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused plaintiff's injuries.

FIFTH CAUSE OF ACTION
42 U.S.C. § 1983 (Excessive Force)

42. Plaintiff repeats and realleges each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.
43. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from the use of excessive force in effecting an arrest.
44. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.
45. As a direct and proximate result of the individual defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.
46. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.
47. That as a result of the foregoing, the plaintiff, **HECTOR CAZADO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

SIXTH CAUSE OF ACTION

42 U.S.C. § 1983 (Deliberate Indifference)

48. Plaintiff repeats and realleges each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.
49. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from deliberate indifference to the medical needs of an arrestee.
50. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.
51. As a direct and proximate result of the individual defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.
52. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.
53. That as a result of the foregoing, the plaintiff, **HECTOR CAZADO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

SEVENTH CAUSE OF ACTION**42 U.S.C. § 1983 (Fabrication of Evidence)**

54. Plaintiff repeats and realleges each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.
55. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive plaintiff of his constitutionally protected rights under the Fourth, Fifth, Sixth and Fourteenth

Amendments to the United States Constitution to be free from the manufacture of false evidence by an investigating official.

56. The defendants produced false reports of the events, that were likely to influence and jury, and forwarded them to prosecutors in the Bronx County District Attorney's Office, and plaintiff suffered a deprivation of liberty as a result.

57. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

58. As a direct and proximate result of the individual defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

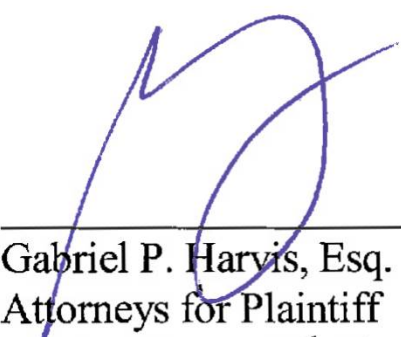
59. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

60. That as a result of the foregoing, the plaintiff, **HECTOR CAZADO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff demands that the following judgments in favor of the Plaintiff, **HECTOR CAZADO**, awarding compensatory and punitive damages against the defendants, along with attorney's fees and costs, for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein, in an amount to be determined upon trial of this action, together with costs and disbursements of this action, and with interest from the date of the incident. Plaintiff demands a jury trial.

Dated: New York, New York
December 3, 2018

Yours, etc.
ELEFTERAKIS, ELEFTERAKIS & PANEK



Gabriel P. Harvis, Esq.
Attorneys for Plaintiff
80 Pine Street, 38th Floor
New York, N.Y. 10005
(212) 532-1116

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) SS:

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and an associate of the law firm of Elefterakis, Elefterakis, & Panek attorneys of record for the claimant herein, affirms:

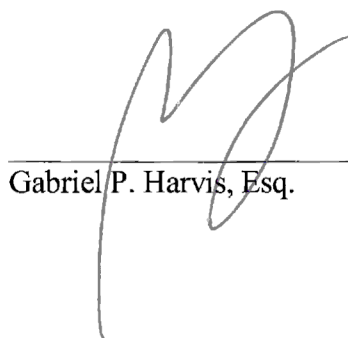
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affirmant's sources of information are investigation and files maintained in your affirmant's law office.

That this verification is made by your affirmant due to the fact that claimant does not presently reside within the county in which your affirmant maintains his law office, or is presently outside the county in which your affirmant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
December 3, 2018



Gabriel P. Harvis, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

HECTOR CAZADO,

Plaintiff,

-against-

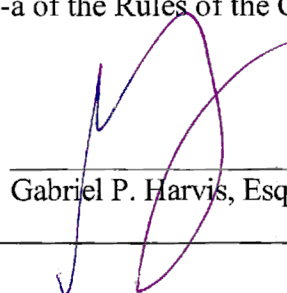
CITY OF NEW YORK, POLICE OFFICER "JOHN" ORTIZ, Shield #7862 and
POLICE OFFICERS JOHN and JANE DOES 1 through 10,

Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

NICHOLAS ELEFTERAKIS, the undersigned, an attorney admitted to practice in the
Courts of New York State, affirms the following:I further certify that my signature below acts as a "certification" for the documents
attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22
NYCRR).Dated: New York, New York
December 3, 2018

Gabriel P. Harvis, Esq.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of
the within Entry named Court on
- () that an Order of which the within is a true copy will be presented for
Notice of settlement to the Hon. one of the Judges of the Settlement within named Court,
on , at

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005